

**REDEVELOPMENT AUTHORITY
OF ALLEGHENY COUNTY**

**GAMING ECONOMIC DEVELOPMENT
TOURISM FUND**

**GRANT
CONTRACT**

Office Address:
Koppers Building
436 Seventh Avenue, Suite 500
Pittsburgh, PA 15219

Contact Numbers:
Tel: 412.350.1000
Fax: 412.642.2217

Website:
<http://www.alleghenycounty.us/economic-development/authorities/gedf-fund.aspx>

Project Name: **Project Sandlot**

Grant Application No.: **2022-GEDTF-020**

Project Manager: **David Clarke**

Grantee: **Monroeville Baseball & Softball Association**

Primary Contact Person for Grantee:

Jose Juan Rodriguez

Grantee's Office Address:
1431 James Street
Monroeville, PA 15146

Name: _____
Title: **President**
Phone: **412-897-9271; 724-601-8453**
Email: **monroevillebaseballassociation@gmail.com**

Type of Entity:

- ☒ nonprofit corporation
☐ for-profit business entity
☐ body corporate and politic (authority)
☐ government

GRANT AMOUNT
\$100,000

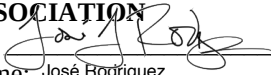
CONTRACT TERM	
Effective Date	Termination Date
March 1, 2023	February 29, 2024

This Grant Contract (this "**Contract**") is made by and between THE REDEVELOPMENT AUTHORITY OF ALLEGHENY COUNTY (the "**Authority**") and the undersigned Grantee, upon the terms and subject to the conditions hereinafter set forth (the "**Terms and Conditions**"). Subject to the terms and conditions of this Contract, the Authority hereby agrees to grant out of the Fund (as such term is defined in the Terms and Conditions attached hereto) to the Grantee the Grant Amount. This Contract is subject to the Terms and Conditions attached hereto, which Terms and Conditions are hereby incorporated herein by reference. By signing below, Grantee acknowledges that it has read this Contract in its entirety, understood the contents hereof, and had opportunity to consult counsel before signing below. The parties hereto have caused this Contract to be signed and attested by their proper officers/officials, pursuant to due and legal action authorizing the same to be done, as of the Effective Date specified above, with the intent to be legally bound hereby.

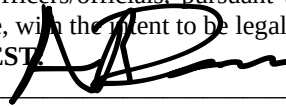
GRANTEE:

MONROEVILLE BASEBALL & SOFTBALL

ASSOCIATION

By: 
Name: Jose Rodriguez
Title: President
Date: 3/3/23

ATTEST:

By: 
Name: Andrew Deselich
Title: Secretary
Date: 3/3/23

AUTHORITY:

**REDEVELOPMENT AUTHORITY OF
ALLEGHENY COUNTY**

By: Lance Chimka Digitally signed by Lance Chimka
Date: 2023.03.13 13:03:23 -04'00'
Name: Lance Chimka
Title: Director
Date: _____

ATTEST:

By: 
Name: Simone Thomas Digitally signed by Simone Thomas
Date: 2023.03.12 14:53:19 -04'00'
Title: Assistant Secretary
Date: _____

TERMS AND CONDITIONS

ARTICLE I BACKGROUND

The Authority is organized under the Urban Redevelopment Law of Pennsylvania Act of May 24, 1945, P.L. 991, as amended (the "**Act**"), and is empowered under the Pennsylvania Race Horse Development and Gaming Act, H.B. No. 2330 (2004) (the "**Gaming Act**") to submit and recommend to the Commonwealth Financing Authority (the "**CFA**"), for its consideration and final approval, proposed projects to be funded by monies from the Pennsylvania Gaming Economic Development and Tourism Fund (the "**State Fund**") for purposes of economic development, community infrastructure and other purposes authorized and permitted under the Gaming Act. The State Fund monies received by the Authority are held by the Authority in its Gaming Economic Development and Tourism Fund (the "**Fund**") for disbursement to the ultimate grantees.

The Grantee has requested a grant for a project (the "**Project**") described on Appendix A hereto and in the Grant Application referenced on the first page of this Contract and submitted to the Authority (the "**Application**"), which Appendix A and Application are hereby incorporated herein by reference.

The Authority and the CFA have approved a grant (the "**Grant**") in an amount not to exceed the Grant Amount specified on the first page of this Contract (the "**Grant Amount**") from the Fund for payment to the Grantee for the Project.

ARTICLE II EFFECTIVE DATES

The term of this Contract shall commence as of the Effective Date specified on the first page of this Contract and shall end on the Termination Date specified on the first page of this Contract, if not terminated earlier pursuant to the other provisions of this Contract.

ARTICLE III PAYMENT PROVISIONS AND FISCAL RESPONSIBILITIES; PROJECT MANAGER

(a) Subject to the terms and conditions of this Contract, the Authority agrees to pay the Grantee for eligible Project costs incurred under this Contract during the Contract Term (as specified on the first page of this Contract) as follows:

(1) Subject to the availability of funds from the Fund and other terms and conditions of this Contract, the Authority will pay to the Grantee the Grant Amount. Under no circumstances shall the Authority or the County of Allegheny (the "**County**") be liable for any expenditure exceeding the Grant Amount.

(2) The Authority may pay the Grantee for eligible Project costs at intervals to be determined by the Authority. The Authority shall have the right to disapprove any expenditure made by the Grantee which is not in accordance with the terms of this Contract and/or the guidelines of the Authority and the CFA, and the Authority may adjust payment to the Grantee accordingly.

(3) This Contract is not binding in any way until this document has been fully executed and delivered to the Grantee. Any costs incurred by the Grantee prior thereto are incurred at the Grantee's risk.

(b) To request payment under this Contract, the Grantee shall, at intervals as determined by the Grantee to meet disbursement needs and in accordance with the budget included in Appendix B hereto (or, if none is attached, any budget for expenditure of the Grant Amount that was submitted to the Authority as part of the Application) (the "**Budget**"), submit written requests for payment based on the Grantee's actual expenditures on the Project, which requests shall be in the form attached hereto as Appendix C (each, a "**Disbursement Request**"). No material change to the Budget shall be permitted without the written approval of the assigned overseer for the Project designated by the Authority (the "**Project Manager**"), subject to the further approval requirements set forth in section (b) of Article XI hereof. Each Disbursement Request submitted by the Grantee shall be completed, signed by an authorized officer of the Grantee, and shall be accompanied by invoices payable with respect to the Project and any other documentation required by the Project Manager. The amount of any Disbursement Request shall not exceed the lesser of: (i) the sum of the invoices submitted therewith; and (ii) the remainder of the Grant Amount. The Authority may set a minimum payment level or amount for each request for payment. Each Disbursement Request, together with all invoices and supporting documentation required to be delivered therewith, must be submitted at least thirty (30) calendar days prior to the requested withdrawal date, which withdrawal date shall be not later than the Termination Date. The Grantee agrees that each submission of a Disbursement Request for any portion of the Grant Amount will constitute, and be deemed to be, a representation that the Grantee is not in default under this Contract (except as the Grantee previously may have specifically disclosed to the Authority in writing).

(c) In addition, eligible Project costs that include costs of construction or rehabilitation will require the Grantee to engage at its cost an independent and qualified architect or engineer to certify in writing that the construction or rehabilitation work constituting eligible Project costs has been completed to the satisfaction of the engaged architect or engineer in accordance with the work specifications. This certification shall appear on Appendix C as set forth therein.

ARTICLE IV REPRESENTATIONS AND WARRANTIES

The Grantee represents and warrants that:

TERMS AND CONDITIONS

- (a) The Grantee's entity type is as specified on the first page of this Contract and the Grantee is organized and existing under the laws of the Commonwealth of Pennsylvania (the "**Commonwealth**").
- (b) This Contract has been duly and validly executed and delivered by the Grantee, and constitutes a valid and legally binding obligation enforceable in accordance with its terms.
- (c) The Grantee is not in default in the performance, observance or fulfillment of any of the obligations, covenants or conditions contained in any material contractual obligation of the Grantee.
- (d) No representation or warranty made by Grantee under this Contract and no statement made by Grantee in any financial statement, certificate, report, exhibit or document furnished by Grantee to the Authority pursuant to or in connection with this Contract is false or misleading in any material respect (including by omission of material information necessary to make such representation, warranty or statement not misleading).
- (e) The Grantee (including directors, officers, members and employees of the Grantee) has no interest, directly or indirectly, which would conflict in any manner or degree with the performance of activities required to be performed under this Contract.
- (f) None of the following have occurred with respect to the Grantee or any subcontractors: (i) violations of laws or regulations; (ii) audit exceptions; (iii) misuse of funds; (iv) a failure to submit required reports; or (v) responsible public officials or private citizens have made allegations of mismanagement, malfeasance or criminal activity.

ARTICLE V CERTAIN CONDITIONS OF THE GRANT

Distribution of the Grant Amount to the Grantee is subject to the accuracy of the representations and warranties contained in this Contract and any related document provided by or on behalf of the Grantee, to the performance by the Grantee of its obligations to be performed hereunder and thereunder, and to the satisfaction of the following further conditions:

- (a) The representations and warranties contained in Article IV shall be true on and as of the Effective Date and as of each date that a disbursement of the Grant Amount is made.
- (b) The Grantee shall not be in default hereunder.
- (c) The Grantee shall have completely performed all past agreements and contracts between the Authority and the Grantee, including the Grantee's timely submission of the required final audit of past agreements or contracts to the Authority.
- (d) All documents listed on Appendix D, which is hereby incorporated herein by reference, shall have been provided to the Authority.
- (e) All additional conditions listed on Appendix A shall be met.
- (f) The Grantee shall have paid all fees and charges related to the Contract and/or the Project that have been assessed by the Authority and/or third parties, including, but not limited to, the fee set forth in section (i) of Article VI hereof.
- (g) Sufficient funds to cover the Grant Amount shall be available from the Fund.
- (h) No material adverse change occurs with respect to the Grantee or any material contractor, subcontractor or supplier.
- (i) The Grantee shall have procured sufficient funds to cover the entire cost of the Project and shall have provided evidence of the availability of such funds to the Project Manager.
- (j) The Grantee shall not expend any portion of the Grant amount or any other Commonwealth funds for religious purposes or to support religious activities. The Authority and all sub grantees shall provide services and programs that are open to all persons, regardless of race, creed, color or religious preference.

ARTICLE VI COVENANTS OF THE GRANTEE

- (a) Hold Harmless. The Grantee shall protect, indemnify and hold the Authority, the County, the CFA, the Commonwealth, and any of their respective agents and employees (collectively, the "**Authority Indemnitees**"), harmless from and against any and all liabilities, damages, suits, claims, demands and actions of whatever nature (including, but not limited to, claims for contributions or indemnification for injuries to or deaths of any person(s), damages to property, or breach of contract) that are based on or arising out of this Contract or any activities performed under or pursuant to this Contract, whether directly or indirectly; and shall defend any and all actions brought against any Authority Indemnitee based upon any such claims or demands. The Grantee's obligation as set forth above shall include any and all attorney's fees incurred by any Authority Indemnitee in relation to any such claims.
- (b) Insurance and Bonding.

TERMS AND CONDITIONS

1. ***Grantee's Insurance Obligations.*** At its own cost and expense, the Grantee shall obtain and maintain at all times throughout the term of this Contract, and shall also cause any contractor and material subcontractor to obtain and maintain, the insurance coverages and minimum amounts specified for each in the Grantee/Contractor Bonding and Insurance Requirements Form provided to the Grantee by the Authority (the "**Insurance Requirements Form**"), together with such other coverage(s) as may be reasonably required by the Authority and/or the CFA from time to time. All policies of insurance shall be endorsed to include the Authority and its officers, directors, agents and employees, as well as the County and its elected officials, officers, appointees and employees, as additional insured. Except where such coverages are required by law or by the Funding Contract (as such term is defined in section (k) of Article XI hereof), the Grantee may request that the Authority waive or modify any of the insurance requirements set forth in the Insurance Requirements Form. The Grantee's request for a waiver of the insurance requirements must be set forth in writing and state the specific reasons that the waiver is being requested. The Authority shall be under no obligation to waive or modify any such requirements. Prior to or contemporaneously with the execution of this Contract, the Grantee shall provide the Authority with ACORD Form Certificate(s) of Insurance issued by a company or companies licensed to do business in the Commonwealth evidencing the insurance coverage(s) and minimum amounts identified in the Insurance Requirements Form. In addition to identifying each of the Authority and its officers, directors, agents and employees as additional insured, the Certificate(s) of Insurance shall provide that the insurance company is required to notify the Authority in writing, at least thirty (30) days prior to the effectiveness thereof, of any termination of the policy or any alterations in the policy that would change, restrict or reduce the insurance provided or change the name of the insured. Throughout the term of this Contract, the Grantee shall provide the Authority, within thirty (30) days of expiration of any such policies, evidence of renewal policies containing insurance coverage(s) identified in the Insurance Requirements Form, in form and substance satisfactory to the Authority. Such evidence shall include, but not necessarily be limited to, new certificate(s) of such insurance coverage.

2. ***Bonding Requirements.*** The Grantee shall be responsible to meet all bonding requirements under all federal, state and local laws applicable to the Grantee or the Project (or, pursuant to Article VII, part (b), its permitted subgrantee, contractor or subcontractor), and the Grantee shall provide evidence of such compliance to the Project Manager. Further, where federal, state or local law does not impose a minimum bonding requirement applicable to such person or the Project, the Grantee shall furnish, and shall cause all subgrantees, contractors or subcontractors to furnish bonds of such types and in such amounts as are required by the Authority and/or the CFA, and the Grantee shall provide evidence of such compliance to the Project Manager. In each case, Grantee shall, at a minimum, furnish the Authority with (i) verification of fidelity bonding of all employees of Grantee who are responsible for the administration of funds provided by the Authority under this Contract, in an amount not less than the Grant Amount, and (ii) for contracts for construction or facility improvements in excess of \$100,000.00, the following: (1) A bid guarantee from each bidder equivalent to five percent of the bid price, and which shall consist of a firm commitment such as a bid bond, certified check, or other negotiable instrument accompanying a bid, as assurance that the bidder will, upon acceptance of his bid, execute such contractual documents as may be required within the time specified; (2) a performance bond on the part of the contractor(s) for one hundred percent of the contract price to secure fulfillment of all the contractor(s)' obligations under such contract; and (3) a payment bond on the part of the contractor for 100 percent of the contract price to secure fulfillment of all the contractor(s)' obligations under such contract.

(c) ***Compliance with Applicable Statutes and Authority Policies.*** The Grantee shall cause all activities authorized by this Contract to be performed in accordance with applicable statutes, regulations, conditions, directives, policies, guidelines and such additional requirements as may be provided by the Authority or required by the Commonwealth and/or the CFA. Without limiting the foregoing, the Grantee acknowledges that this Contract is subject to all requirements set forth herein and in Appendix E hereto, incorporated herein by reference, and further agrees that it will comply with future policies and requirements determined by the Authority and/or the CFA to be necessary.

(d) ***Providing Services; Use of Funds.*** The Grantee shall perform the Scope of Services (the "**Services**") set forth on Appendix A hereto and shall use the funds granted hereunder only for the purpose of performing such Services. The Grantee shall expend such funds only in accordance with the Budget and the requirements of this Contract.

(e) ***Records.*** The Grantee, using accepted procedures, shall maintain at its principal office or place of business complete and accurate records and accounts including documents, correspondence and other evidence pertaining to costs and expenses of this Contract, and reflecting all matters and activities covered by this Contract. At any time during normal business hours and as often as the Authority and/or the CFA deems necessary, the Grantee shall make available for inspection by the Authority, the CFA, the Controller of the County, the Commonwealth Auditor General, the Commonwealth Attorney General, or the Comptroller General of the United States, or their duly authorized representative, all of its records with respect to all matters covered by this Contract and will permit the Authority to audit, examine and make copies of such records. All required records shall be maintained by the Grantee for a period of five (5) years from the date of final audit or close out of this Contract by the Authority, except in those cases where unresolved audit questions may require maintaining some or all records for a longer period. In such event, records shall be maintained until all pending matters are resolved.

(f) ***Progress Reports.*** The Grantee and its subcontractors shall furnish to the Authority and/or the CFA, as applicable, such progress reports in such form and quantity as the Authority and/or the CFA may from time to time require, including, but not limited to, status reports of the Project, Project account statements, certificates, approvals, proposed budgets, invoices, copies of all contracts executed and proposed, employment placements, follow up reports and any and all other information relative to the Contract or Project as may be requested. The Grantee shall provide to the Authority a quarterly report detailing the amount of funds disbursed for the Project and such other information as the Authority may require. The Authority or its representatives shall have the right to make reasonable inspections to monitor the Grantee's performance under this Contract.

(g) ***Audit and Closeout Requirements.*** Within 180 days following the earlier of: (i) completion of Project activities or this contract termination date, Grantee shall have performed a program audit of the Project, detailing the expenditure of the Grant Amount and any other Project funding, which audit shall be performed by an independent auditor acceptable to the Authority, at the Grantee's sole expense. Notwithstanding the foregoing, the Grantee shall, and shall cause all subgrantees and subcontractors to, permit the Authority and/or the CFA to perform audits of a financial or performance nature throughout the term of this Contract and thereafter if the Authority and/or the CFA, in their sole discretion, shall deem necessary.

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(h) Interested Grantee Parties. The Grantee (including directors, officers, members and employees of the Grantee) shall not acquire any interest, directly or indirectly, which would conflict in any manner or degree with the performance of activities required to be performed under this Contract. The Grantee further covenants that no person having any such interest shall be employed in the performance of activities for this Contract.

(i) Additional Conditions. The Grantee shall comply with all additional conditions listed on Appendix A hereto.

ARTICLE VII ASSIGNMENT; SUBCONTRACTS

(a) Assignment. This Contract shall be binding upon and inure to the benefit of the Authority, the Grantee, and their respective successors and assigns, except that the Grantee may not assign, make any sub-grant with respect to, or otherwise transfer any of its rights hereunder without the prior written consent of the Authority and the CFA. Approval of an assignment does not establish any legal relationship between the Authority and any other third party, and under no circumstances shall the Authority be held liable for any act or omission committed pursuant to such an assignment.

(b) Subcontracts. The Grantee shall not execute or concur in any agreement with any person or entity in any respect concerning the Project or the assignment of rights or delegation of duties hereunder without prior written approval of the Authority. Such prior written approval shall not be required for the subsequent dispensation of funds to a contractor or subcontractor under an approved agreement for the purposes and in the manner permitted by this Contract. The Grantee shall not execute or concur in any contract declared disapproved by the Authority. A subgrantee, contractor or subcontractor shall be automatically disapproved, without a declaration from the Authority, if such person is currently or becomes suspended or debarred by the Authority, the County, the Commonwealth or the federal government. In any event, the Grantee shall be responsible for the quantity and quality of the performance of any of its agreements pertaining to the Project. Furthermore, the Grantee shall cause each subgrantee, contractor and subcontractor to comply with the terms hereof, and each party shall be bound by the terms hereof applicable to the Grantee. By accepting any portion of the Grant Amount provided to the Grantee hereunder, such subgrantee, contractor or subcontractor shall be deemed to have accepted the terms hereof and be bound hereby. In furtherance of the foregoing and not in limitation thereof, all subcontracts must include the audit requirements as specified by the Authority. The Grantee is responsible for ensuring that all required audits of subcontractors are performed, and for resolving any findings contained in the audit reports. All costs deemed unallowable in the subcontract audit report are required to be returned to the Authority, through the Grantee.

ARTICLE VIII INTEREST OF PARTIES AND OTHERS

No officer, member, employee, independent contractor or elected official of the Commonwealth, County or the Authority, and no member of its governing body who exercises any functions or responsibilities in the review or approval of activities being performed under this Contract shall participate in any decision relating to this Contract which affects his/her personal interest or the interest of any corporation, partnership or association in which he/she is directly or indirectly interested. Nor shall any such officer, member, elected official or employee of the Commonwealth, County or the Authority, or any member of its governing body, have any interest direct or indirect in this Contract or the proceeds thereof.

The Grantee represents and warrants that no elected Commonwealth or County official or any employee of the Authority, or a member of such elected Commonwealth or County official or Authority employee's immediate family (parent, spouse, domestic partner, child, brother, sister, daughter-in-law, son-in-law or grandchild), or any entity in which any such person shall have an ownership interest of 5% or greater or a controlling interest, has received or will receive a direct or indirect pecuniary benefit from or as a result of the full execution of this Contract. Further, the Grantee represents and warrants that it has not and will not enter into any contract for goods or services with the persons enumerated above using any funds made available to Grantee under this Contract.

ARTICLE IX TEMPORARY SUSPENSION OF THE CONTRACT

Upon written notice and at any time during the term hereof, the Authority may suspend payments and/or request suspension of all or any part of the Contract activities. The Authority may elect to so suspend for the following reasons:

(a) The occurrence of any breach of representation, warranty or covenant of the Grantee hereunder or of any other term of this Contract by the Grantee.

(b) When, in the opinion of the Authority, the activities cannot be continued in such manner as to adequately fulfill the intent of statute, regulations, or the Grant due to act of God, strike or disaster.

(c) When any part of the portion of the Fund set aside by the Authority for the Project shall become unavailable to the Authority.

During the term of suspension, the Authority may retain any and all funds previously approved for application to the Project activities.

ARTICLE X TERMINATION OF THE CONTRACT

The Authority may terminate this Contract at any time (including during any suspension thereof) (i) for breach of the terms of this Contract (including any representations, warranties, covenants or other terms herein) by the Grantee or any subcontractor of the Grantee, or (ii) for any other

TERMS AND CONDITIONS

reason if it determines that termination is in its best interests, or is otherwise appropriate, by giving written notice to the Grantee of such termination and specifying the effective date thereof. Termination pursuant to subsection (ii) of this section shall not be applicable to funds that the Grantee is legally or contractually obligated to pay as a result of Project activities entered into prior to the date that it receives written notice of termination. The entirety of the Grant Amount disbursed to the Grantee (other than, in the case of subsection (ii) above, any portion thereof that is legally or contractually obligated), plus accrued interest at the rate of the Federal Funds Effective Rate for such day plus 200 basis points, shall be returned to the Authority on or before the effective date of termination and all Project records shall be made available to the Authority. **"Federal Funds Effective Rate"** means, for any day, the rate per annum (based on a year of 360 days and the actual days elapsed and rounded upward to the nearest 1/100th of 1%) announced by the Federal Reserve Bank of New York (or any successor) on such day as being the weighted average of the rates on overnight federal funds transactions arranged by federal funds brokers on the previous trading day, as computed and announced by Federal Reserve Bank of New York (or any successor) in substantially the same manner as such Federal Reserve Bank computes and announces the weighted average it refers to as the **"Federal Funds Effective Rate"** as of the date of this Contract; provided, however, if such Federal Reserve Bank (or its successor) does not announce such rate on any day, the **"Federal Funds Effective Rate"** for such day shall be the Federal Funds Effective Rate for the last business day for which such rate was announced. Action under this paragraph shall not limit or deprive the Authority from exercising any or all of its rights and remedies as it may have under law or equity.

ARTICLE XI MISCELLANEOUS

(a) **Entire Agreement.** This Contract, when signed by all the parties hereto, constitutes the full and complete understanding and agreement of the parties of its express terms as provided above. No provision of this Contract shall be construed in any manner so as to create any rights in third parties not party to this Contract. It shall be interpreted solely to define specific duties and responsibilities between the Authority and the Grantee and shall not provide any basis for claims of any other individual, partnership, corporation, organization or municipal entity.

(b) **Amendments and Modifications.** A Contract amendment duly executed by authorized representatives of both parties is required to change the Termination Date, to amend the Grant Amount or to make major changes in overall Project scope or objectives, or the activities to be conducted under this Contract. Other revisions may be made upon written approval from the Project Manager after prior written request of the Grantee.

(c) **Notices.** All notices, requests, demands, directions and other communications (collectively **"Notices"**) under the provisions of this Contract shall be in writing (including telexed communication) unless otherwise expressly permitted hereunder and shall be sent by first-class or first-class express mail, or by telex with confirmation in writing mailed first-class, in all cases with charges prepaid, and any such properly given Notice shall be effective when received. All Notices shall be sent to the party in question at the address listed on the first page of this Contract or in accordance with the last unrevoked written direction from such party to the other parties. Notices sent to the Authority shall be conspicuously marked to the attention of the applicable Project Manager.

(d) **Independence.** Notwithstanding anything contained herein to the contrary, the rights and duties hereby granted to and assumed by the Grantee are those of an independent contractor only. Nothing contained herein shall be so construed as to create an employment, agency or partnership relationship between the Authority and the Grantee.

(e) **Severability.** Should any section or any part of any section of this Contract be rendered void, invalid or unenforceable by any court of law, for any reason, such a determination shall not render void, invalid, or unenforceable any other section or part of any section of this Contract.

(f) **Construction.** All of the terms and conditions of this Contract are expressly intended to be construed as covenants as well as conditions. The titles of the sections and subsections herein have been inserted as a matter of convenience and reference only and shall not control or affect the meaning or construction of any of the terms or provisions herein.

(g) **No Waiver.** No delay or failure on the part of the Authority in exercising any right, power or privilege hereunder shall affect such right, power or privilege; nor shall any single or partial exercise thereof or any abandonment, waiver, or discontinuance of steps to enforce such a right, power or privilege preclude any other or further exercise thereof, or the exercise of any other right, power or privilege. The rights and remedies of the Authority hereunder are cumulative and concurrent and not exclusive of any rights or remedies which it might otherwise have. The Authority shall have the right at all times to enforce the provisions of this Contract in accordance with the terms hereof notwithstanding any conduct or custom on the part of the Authority in refraining from so doing at any time or times. The failure of the Authority at any time or times to enforce its rights under such provisions, in accordance with the same, shall not be construed as having created a custom in any way or manner contrary to specific provisions of this Contract or as having in any way or manner modified or waived the same.

(h) **No Personal Liability.** No elected official, director, officer, agent or employee of the Authority or the County shall be charged personally or held contractually liable by or to the Grantee under any term of this Contract or because of any execution, approval, attempted execution or breach thereof.

(i) **Governing Law.** This Contract is governed by, and should be construed and interpreted in accordance with, the internal laws of the Commonwealth, except where federal law is clearly applicable. Unless otherwise required by law, Grantee agrees that any litigation arising out of this Contract shall be filed exclusively in the Court of Common Pleas of Allegheny County, Pennsylvania.

(j) **Grantor Recognition.** The Grantee shall insure recognition of the role of the Authority and the CFA in providing the Grant Amount. All activities, facilities and items utilized pursuant to this Contract shall be prominently labeled as to funding source. In addition, the Grantee will include a reference to the financial support provided hereunder in all publications made possible with funds made available under this

TERMS AND CONDITIONS

Contract. Signs acknowledging CFA financial assistance or administrative participation will be erected in the Project area as soon as possible after the effective date of this Contract.

(k) FUNDING CONTRACT. THIS CONTRACT AND THE PARTIES HERETO ARE SUBJECT ENTIRELY TO THE TERMS AND CONDITIONS OF THAT CERTAIN CONTRACT BETWEEN THE COMMONWEALTH OF PENNSYLVANIA, ACTING THROUGH THE CFA, AND THE AUTHORITY, IDENTIFIED AS CONTRACT NO. C000052127 (THE "**FUNDING CONTRACT**"). THE GRANTEE HEREBY ACKNOWLEDGES THAT IT IS, AND EACH OF ITS SUBGRANTEES AND SUBCONTRACTORS IS, SUBJECT TO THE TERMS OF THE FUNDING CONTRACT.

(l) Survival. All representations, warranties, covenants, commitments, and agreements of the Grantee made in this Contract or in any certificate or document delivered pursuant hereto shall remain in full force and effect and shall survive the execution and delivery hereof and the expiration, termination or fulfillment of this Contract.

(m) Counterparts. This Contract may be executed in any number of counterparts, including by facsimile or electronic signature, each of which, when so executed, shall be deemed an original, but all such counterparts shall constitute one and the same instrument.

ARTICLE XII LIMITATION ON LIENS

The Grantee shall not make, create, incur, assume or suffer to exist any Lien upon or with respect to any part of its personalty or equipment purchased with the funds or proceeds advanced pursuant to this Contract, whether now owned or hereafter acquired. For purposes of this Contract, "**Lien**" means any mortgage, deed of trust, pledge, hypothecation, assignment, charge or deposit arrangement, encumbrance, lien (statutory or otherwise) or preference, priority or other security interest or preferential arrangement of any kind or nature whatsoever (including those created by, arising under or evidenced by any conditional sale or other title retention agreement, the interest of a lessor under a capital lease, any financing lease having substantially the same economic effect as any of the foregoing, or the filing of any financing statement naming the owner of the asset to which such lien relates as debtor, under the UCC or any comparable law) and any contingent or other agreement to provide any of the foregoing, but not including the interest of a lessor under a lease which is not a capital lease. As used herein, "**capital lease**" shall mean any lease of any tangible or intangible property (whether real, personal or mixed), however denoted, which is required by generally accepted accounting principles to be reflected as a liability on the balance sheet of the lessee, including but not limited to synthetic or other similar leases.

ARTICLE XIII WAIVER OF TRIAL BY JURY

GRANTEE HEREBY WAIVES THE RIGHT TO A TRIAL BY JURY IN ANY COURT AND IN ANY ACTION OR PROCEEDING OF ANY TYPE IN WHICH GRANTEE OR ITS SUCCESSORS OR ASSIGNS IS A PARTY AS TO ALL MATTERS AND THINGS ARISING OUT OF OR RELATING TO THIS CONTRACT.

ARTICLE XIV WARRANT OF ATTORNEY TO CONFESS JUDGMENT

GRANTEE HEREBY IRREVOCABLY AUTHORIZES AND EMPOWERS ANY ATTORNEY OR ANY CLERK OF ANY COURT OF RECORD, TO APPEAR FOR AND CONFESS JUDGMENT AGAINST SUCH GRANTEE FOR SUCH SUMS AS ARE DUE AND/OR MAY BECOME DUE UNDER THIS CONTRACT, WITH OR WITHOUT DECLARATION, WITH COSTS OF SUIT, WITHOUT STAY OF EXECUTION AND WITH AN AMOUNT EQUAL TO TEN PERCENT (10%) OF THE AMOUNT OF SUCH JUDGMENT, BUT NOT LESS THAN ONE THOUSAND DOLLARS (\$1,000), ADDED FOR ATTORNEYS' COLLECTION FEES. NOTWITHSTANDING THE ATTORNEY'S COMMISSION PROVIDED FOR IN THE PRECEDING SENTENCE (WHICH IS INCLUDED IN THE WARRANT FOR PURPOSES OF ESTABLISHING A SUM CERTAIN), THE AMOUNT OF ATTORNEYS' FEES THAT THE AUTHORITY MAY RECOVER FROM THE GRANTEE SHALL NOT EXCEED THE ACTUAL ATTORNEYS' FEES INCURRED BY THE AUTHORITY. TO THE EXTENT PERMITTED BY LAW, GRANTEE RELEASES ALL ERRORS IN SUCH PROCEEDINGS. IF A COPY OF THIS CONTRACT, VERIFIED BY AFFIDAVIT BY OR ON BEHALF OF THE AUTHORITY OF THIS CONTRACT SHALL HAVE BEEN FILED IN SUCH ACTION, IT SHALL NOT BE NECESSARY TO FILE THE ORIGINAL OF THIS CONTRACT AS A WARRANT OF ATTORNEY. THE AUTHORITY AND POWER TO APPEAR FOR AND CONFESS JUDGMENT AGAINST GRANTEE SHALL NOT BE EXHAUSTED BY THE INITIAL EXERCISE THEREOF AND MAY BE EXERCISED AS OFTEN AS THE AUTHORITY SHALL FIND IT NECESSARY AND DESIRABLE AND THIS CONTRACT SHALL BE A SUFFICIENT WARRANT THEREFOR. THE AUTHORITY HEREOF MAY CONFESS ONE OR MORE JUDGMENTS IN THE SAME OR DIFFERENT JURISDICTIONS FOR ALL OR ANY PART OF THE AMOUNT OWING HEREUNDER, WITHOUT REGARD TO WHETHER JUDGMENT HAS THERETOFORE BEEN CONFESSED ON MORE THAN ONE OCCASION FOR THE SAME AMOUNT. IN THE EVENT ANY JUDGMENT CONFESSED AGAINST GRANTEE HEREUNDER IS STRICKEN OR OPENED UPON APPLICATION BY OR ON GRANTEE'S BEHALF FOR ANY REASON, THE AUTHORITY IS HEREBY AUTHORIZED AND EMPOWERED TO AGAIN APPEAR FOR AND CONFESS JUDGMENT AGAINST GRANTEE FOR ANY PART OR ALL OF THE AMOUNTS OWING HEREUNDER, AS PROVIDED FOR HEREIN, IF DOING SO WILL CURE ANY ERRORS OR DEFECTS IN SUCH PRIOR PROCEEDINGS.

TERMS AND CONDITIONS

GRANTEE EXPRESSLY ACKNOWLEDGES THAT THIS IS A COMMERCIAL TRANSACTION, THAT THE FOREGOING PROVISIONS FOR WAIVER OF JURY TRIAL AND CONFESSION OF JUDGMENT HAVE BEEN READ, UNDERSTOOD AND VOLUNTARILY AGREED TO BY GRANTEE AND THAT BY AGREEING TO SUCH PROVISIONS GRANTEE IS WAIVING IMPORTANT LEGAL RIGHTS, INCLUDING ANY RIGHT TO NOTICE OR A HEARING WHICH MIGHT OTHERWISE BE REQUIRED BEFORE ENTRY OF JUDGMENT HEREUNDER, THE EXECUTION ON ANY SUCH JUDGMENT OR THE SEIZING OF GRANTEE'S PROPERTY IN CONNECTION WITH ANY SUCH EXECUTION.

WARNING: BY SIGNING THIS PAPER YOU GIVE UP YOUR RIGHT TO NOTICE AND COURT TRIAL. A COURT JUDGMENT MAY BE TAKEN AGAINST YOU WITHOUT YOUR PRIOR KNOWLEDGE AND THE POWERS OF A COURT CAN BE USED TO COLLECT FROM YOU REGARDLESS OF ANY CLAIMS YOU MAY HAVE AGAINST THE AUTHORITY WHETHER FOR FAILURE ON ITS PART TO COMPLY WITH THE CONTRACT OR ANY OTHER CAUSE.

APPENDIX A

PROJECT DESCRIPTION

I. Project:

The purpose of this Project is to improve the infrastructure and sporting experience for athletes in the Monroeville and surrounding area, in order to make Monroeville the premier destination to host tournaments, parties, and community activities.

GEDTF funds will be used to improve the infrastructure at Monroeville Community Park West Baseball and Softball complex, lighting and safety netting, as well as installing scoreboards and batting cages to be used by all that rent the facilities.

- a. *Jobs/Economic:* See Section I, above.
- b. *Infrastructure:*
- c. *Community Improvement:* See Section I, above.
- d. *Public Safety:*
- e. *Public Interest:*

**APPENDIX B
BUDGET**

PROJECT SOURCES AND USES TABLE				
Name of funding source:	Allegheny Co GEDTF	SOURCE #2	SOURCE #3	SOURCE #4
	GEDTF		Local	
LAND				
Acquisition				
Site Preparation				
Infrastructure	\$100,000			
Other: Parking Lot/Sidewalk				
BUILDING				
Acquisition				
Construction-New				
Rehabilitation/Buildout				
Engineering				
Architectural				
Other				
MACHINERY & EQUIPMENT				
Acquisition				
New Equipment				
Used Equipment				
Delivery/Installation				
Other-Computers				
WORKING CAPITAL				
Inventory				
Training				
Other-Working Capital				
ENVIRON. REMEDIATION				
Remediation Study				
Other:				
VACANT PROPERTY REUSE				
Prep & Assemblage				
TRAINING				
SOFT COSTS				
Planning				
Engineering				
Architectural				
Permit Fees				
Title Ins. Recording				
Surveys				
Appraisal Costs				
Legal Costs				
Broker Fee				
Transfer Tax				
Interest During Construction				
Contingencies				
Close out Audit (Local column)				
Other: Admin				
TOTAL:	\$100,000			

APPENDIX C

FORM OF DISBURSEMENT REQUEST

(See attached.)

GEDTF DISBURSEMENT REQUEST

Redevelopment Authority of Allegheny County
Gaming Economic Development Fund
Koppers Building
436 Seventh Avenue, Suite 500
Pittsburgh, PA 15219
Attn:

Re: Grant Contract Number: 2022-GEDTF-020
Project Name: Project Sandlot

The undersigned hereby requests a withdrawal pursuant to the above-referenced Grant Contract as set forth below:

- | | |
|--|-----------|
| 1. Total Grant Amount: | \$100,000 |
| 2. Total Disbursements to Date (Include Origination Fee): | \$ |
| 3. Available Grant Funds: <i>(Line 1 less Line 2)</i> | \$ |
| 4. Total Amount of Invoice(s) Attached: | \$ |
| 5. Permitted Disbursement: <i>(Lesser of Line 3 and Line 4)</i> | \$ |
| 6. <u>Amount of Requested Disbursement:</u> <i>(Must be $\leq$ Line 5)</i> | \$ |
| 7. Requested Withdrawal Date: | |
| 8. Purpose of Withdrawal: | |

I have personally reviewed the information contained in this Disbursement Request against the terms contained in the above-referenced Grant Contract, and it is in accordance with the terms and conditions thereof, including the attachment of the corresponding invoice(s). Terms used herein and not described shall have the meanings ascribed to them in the above-referenced Grant Contract. THE REPRESENTATIONS REQUIRED BY ARTICLE III(b) OF SAID GRANT CONTRACT ARE HEREBY MADE.

GRANTEE:
**MONROEVILLE BASEBALL &
SOFTBALL ASSOCIATION**

By: 
Name: José J. Rodriguez
Title: President
Date: 3/3/23

**[FOR CONSTRUCTION AND REHABILITATION PROJECTS ENGAGING AN
ARCHITECT OR ENGINEER]**

I, [name or company name], architect/engineer engaged to perform project services for the within described Project, hereby certify that all work performed on the Project for which this Disbursement Request has been submitted has been performed in a workmanlike manner and in accordance with all applicable specifications.

By: _____
Architect or Engineer Signature

Printed Name of Architect/Engineer or Firm

Date

PROJECT COST/DISBURSEMENT BREAKDOWN					
	BUDGET (GEDTF FUNDS)	Disbursements to Date	Requested Disbursement	Total Aggregate Disbursements	Balance
LAND					
Acquisition					
Site Preparation					
Infrastructure	\$100,000				
Other:					
BUILDING					
Acquisition					
Construction					
Rehabilitation/Buildout					
Engineering					
Architectural					
Other					
MACHINERY & EQUIPMENT					
Acquisition					
New Equipment					
Used Equipment					
Delivery/Installation					
Other (training)					
Other (Software Licenses)					
WORKING CAPITAL					
Inventory					
Training					
Other					
ENVIRON. REMEDICATION					
Remediation Study					
Other:					
VACANT PROPERTY REUSE					
Prep & Assemblage					
TRAINING					
SOFT COSTS					
Planning					
Engineering					
Architectural					
Permit Fees					
Title Ins. Recording					
Surveys					
Appraisal Costs					
Legal Costs					
Brokers Fees					
Transfer Tax					
Interest During Construction					
Contingencies					
Other: Admin					
TOTAL:	\$100,000				

APPENDIX D

REQUIRED DELIVERABLES

1. Secretary's Certificate of the Grantee. A certificate of the Grantee in form and substance satisfactory to the Authority signed on behalf of the Grantee by the secretary or any assistant secretary of the Grantee, certifying as to (a) a true copy of the formation documents of the Grantee (certified by the Secretary of the Commonwealth where applicable), (b) true copies of all corporate actions taken by the Grantee with respect to this Contract, (c) the names, true signatures and incumbency of all Officers of the Grantee that will be executing the Contract or any other documents delivered with respect thereto, and (d) the federal tax identification numbers of each such entity.
2. Certificate of the Grantee. A certificate of the Grantee in form and substance satisfactory to the Authority signed on behalf of the Grantee by an appropriate officer of the Grantee, certifying, for itself and all its subcontractors and suppliers, that (a) as of the date of its execution of the Contract, neither the Grantee, nor any subcontractors, nor any suppliers are under suspension or debarment by the Authority, the County, the Commonwealth or any governmental entity, instrumentality, or authority (if the Grantee cannot so certify, then it must submit a written explanation of why such certification cannot be made), and (b) as of the date of its execution of this Contract, it has no tax liabilities or other County or Commonwealth obligations, other than those that are both (i) incurred in the ordinary course of its operations and (ii) not yet due and payable.
3. Certificates of Insurance. Certificates of insurance required under Article VI, section (b), evidencing the coverages required under the terms of this Contract, each in form and substance satisfactory to the Authority.
4. Certificate of Good Standing/Subsistence. Good standing/subsistence certificate of the Grantee from the Secretary of State of Grantee's jurisdiction of organization.
5. Other Documents and Conditions. Such other documents and conditions as may be required by the Authority to be submitted by the Grantee with respect to the transactions contemplated by this Contract.

SECRETARY'S CERTIFICATE OF THE GRANTEE

The undersigned does hereby certify that he/she is the (Assistant) Secretary of **MONROEVILLE BASEBALL & SOFTBALL ASSOCIATION** (the "**Grantee**"), and does hereby further certify pursuant to that certain Grant Contract dated as of the 1st day of March, 2023, between the Redevelopment Authority of Allegheny County and the Grantee (the "**Contract**") that:

1. Attached hereto as **Exhibit A** is a true, correct and complete copy of the Grantee's formation documents, as the same may have been amended or modified from time to time, and that such documents as attached hereto are in full force and effect on the date hereof, having not been further amended or modified or rescinded.

2. Attached hereto as **Exhibit B** is a true, correct and complete copy of the resolutions of the Grantee approving the transactions contemplated by the Contract. Such resolutions have not been amended, modified, revoked or rescinded since the date of their adoption and remain in full force and effect as of the date hereof.

3. The following persons are duly elected, qualified, incumbent and acting officers of the Grantee and hold the offices set forth beside their respective names, and the signature appearing opposite each such name is the genuine signature of such officer:

<u>Name</u>	<u>Office</u>	<u>Signature</u>
José Rodriguez	President	
Andy Deselich	Treasurer	
Tannon DeLuco	Secretary	

4. The Grantee's federal tax identification number is 87-2176133.

IN WITNESS WHEREOF, the undersigned has executed and delivered this Secretary's Certificate as of March 3, 2023, but to be made effective as of March 1, 2023.

MONROEVILLE BASEBALL & SOFTBALL ASSOCIATION

By: Tanna DeLuco
Tannon DeLuco, Secretary

EXHIBIT A
FORMATION DOCUMENTS OF THE GRANTEE
(attached)

EXHIBIT B

RESOLUTIONS

(attached)

GRANTEE'S CERTIFICATE

The undersigned, José J. Rodriguez of **MONROEVILLE BASEBALL & SOFTBALL ASSOCIATION** (the “**Grantee**”), pursuant to that certain Grant Contract dated as of March 1, 2023, between the Redevelopment Authority of Allegheny County (the “**Authority**”), and the Grantee (the “**Contract**”), hereby certifies on behalf of the Grantee that:

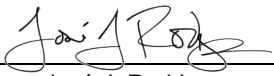
1. As of the date of the execution of the Contract, neither the Grantee nor any subcontractors or suppliers are under suspension or debarment by the Authority, the County of Allegheny, the Commonwealth of Pennsylvania or any governmental entity, instrumentality, or authority; and

2. As of the date of the execution of the Contract, the Grantee has no tax liabilities or other County or Commonwealth of Pennsylvania obligations, other than those incurred in the ordinary course of its operations and which are not yet due and payable.

All capitalized terms used, but not defined herein, shall have the meanings ascribed thereto in the Contract.

IN WITNESS WHEREOF, the undersigned has executed this Certificate as of the 3rd day of March, 2023, but to be made effective as of March 1, 2023.

**MONROEVILLE BASEBALL &
SOFTBALL ASSOCIATION**

By: 
Name: José J. Rodriguez
Title: President

APPENDIX E

CERTAIN STATUTES AND REGULATIONS

(a) Compliance with Commonwealth of Pennsylvania Statutes and Regulations:

The Grantee agrees to comply with all applicable federal, state and local statutes, codes and regulations, including, but not limited to, all statutes and regulations applicable to public contracts in Pennsylvania, including, but not limited to, the Building Energy Conservation Act, the Pennsylvania Prevailing Wage Act, the Resident Labor Requirement Act, the Steel Products Procurement Act, the Trade Practices Act, the Public Works Contractor's Bond Act of 1967, and the Flood Plain Management Act.

(b) Nondiscrimination/Sexual Harassment Provisions:

During the term of this Contract, the Grantee agrees as follows:

- (1) In the hiring of any employee(s) for the manufacture of supplies, performance of work, or any other activity required under the Contract or any subcontract, the Grantee, any subcontractor, or any person acting on behalf of the Grantee or subcontractor shall not, by reason of gender, race, religious creed, color, handicap, ancestry, or national origin, discriminate against any citizen of this Commonwealth of Pennsylvania (hereinafter, including, any agencies, subdivisions and instrumentalities thereof, the "Commonwealth") who is qualified and available to perform the work to which the employment relates. The Grantee, any subcontractor, or any person acting on behalf of the Grantee or subcontractor shall not in any manner discriminate against or intimidate any of its employees on account of gender, race, religious creed, color, handicap, ancestry or national origin. The Grantee shall take affirmative action to insure that applicants are employed and that employees or agents are treated during employment without regard to their race, color, religious creed, handicap, ancestry, national origin, age or sex. Such affirmative action shall include, but is not limited to: employment; upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training. The Grantee shall post in conspicuous places available to employees, agents, applicants for employment and other persons, a notice to be provided by the contracting agency setting forth the provisions of this section. The Grantee shall state in advertisements or requests for employment placed by it or on its behalf, that all qualified applicants will receive consideration for employment without regard to race, color, religious creed, handicap, ancestry, national origin, age or sex.
- (2) The Grantee shall send each labor union or workers' representative with which it has a collective bargaining agreement or other agreement or understanding, a notice advising said labor union or workers' representative of its commitment to this section. Similar notice shall be sent to every other source of recruitment regularly utilized by the Grantee. It shall be no defense to a finding of noncompliance with this section that the Grantee had delegated some of its employment practices to any union, training program or other source of recruitment, which prevents it from meeting its obligations. Where the practices of a union or any training program or other source of recruitment will result in the exclusion of minority group persons so that the Grantee will be unable to meet its obligations under this section, the Grantee shall then employ and fill vacancies through other nondiscriminatory employment procedures.
- (3) The Grantee and any subcontractors shall establish and maintain a written sexual harassment policy and shall inform their employees of the policy. The policy must contain a notice that sexual harassment will not be tolerated and employees who practice it will be disciplined.
- (4) The Grantee and any subcontractors shall not discriminate by reason of gender, race, religious creed, color, handicap, ancestry, or national origin against any subcontractor or supplier who is qualified to perform the work to which the Contract relates.
- (5) The Grantee and each subcontractor shall furnish all necessary employment documents and records to, and permit access to their books, records, and accounts by, the Authority or its designee (including, without limitation, the CFA and/or the Commonwealth's Bureau of Minority and Women business Opportunities), for purposes of investigation, to ascertain compliance with provisions of these

Nondiscrimination/Sexual Harassment provisions. If the Grantee or any subcontractor does not possess documents or records reflecting the necessary information requested, the Grantee or subcontractor shall furnish such information on reporting forms supplied by the Authority. The Grantee and each subcontractor shall assist the Authority, promptly upon the Authority's request, in completing Form STD-21, the "Initial Contract Compliance Data" form, as required by the CFA.

- (6) The Grantee and each subcontractor shall include the provisions of this Nondiscrimination/Sexual Harassment Clause in every subcontract so that such provisions will be binding upon each subcontractor.
- (7) Notwithstanding anything in this Contract to the contrary, all money due or to become due under this Contract may be forfeited for a violation of the terms and conditions of this Nondiscrimination/Sexual Harassment Clause or any state or federal law prohibiting discrimination in hiring or employment opportunities. In addition, the Contract may be terminated or suspended, in whole or in part, and the Grantee may be declared temporarily ineligible for further agreements with the Authority or the Commonwealth, and other sanctions may be imposed and remedies invoked, including but not limited to, debarment or suspension of the Grantee.

(c) Grantee Responsibility Provisions:

For the purpose of these provisions, the term "**Grantee**" is defined as any person, including, but not limited to, a bidder, offeror, loan recipient, grantee, subgrantee or subcontractor, who has furnished or seeks to furnish goods, supplies, services, or leased space, or who has performed or seeks to perform construction activity under contract, subcontract, grant, or subgrant with the Authority, or with a person under contract, subcontract, grant, or subgrant with the Authority or its affiliated entities and related institutions. The term Grantee may include a permittee, licensee, or any agency, political subdivision, instrumentality, public authority, or other entity of the Commonwealth.

- (1) The Grantee must certify, in writing, for itself and all its subcontractors, that as of the date of its execution of any Authority contract, that neither the Grantee, nor any subcontractors, nor any suppliers are under suspension or debarment by the Authority, the County, the Commonwealth or any governmental entity, instrumentality, or authority and, if the Grantee cannot so certify, then it agrees to submit, along with the bid/proposal, a written explanation of why such certification cannot be made.
- (2) The Grantee must also certify, in writing, that as of the date of its execution of this Contract it has no tax liabilities or other County or Commonwealth obligations.
- (3) The Grantee's obligations pursuant to these provisions are ongoing from and after the effective date of the Contract through the termination date thereof. Accordingly, the Grantee shall have an obligation to inform the Authority if, at any time during the term of the Contract, it becomes delinquent in the payment of taxes, or other County or Commonwealth obligations, or if it or any of its subcontractors are suspended or debarred by the Authority, the County, the Commonwealth, the federal government, or any other state or governmental entity. Such notification shall be made within 15 days of the date of suspension or debarment.
- (4) The failure of the Grantee to notify the Authority of its suspension or debarment by the Authority, the County, the Commonwealth or any other state, or the federal government shall constitute an event of default under this Contract.
- (5) The Grantee agrees to reimburse the Authority for the reasonable costs of investigation incurred by the Authority for investigations of the Grantee's compliance with the terms of this Contract or any other agreement between the Grantee and the Authority, which results in the suspension or debarment of the Grantee. Such costs shall include, but shall not be limited to, salaries of investigators, including overtime; travel and lodging expenses; and expert witness and documentary fees. The Grantee shall not be responsible for investigative costs for investigations that do not result in the Grantee's suspension or debarment.
- (6) The Grantee may obtain the current list of suspended and debarred contractors by contacting the:

Department of General Services
Office of Chief Counsel
603 North Office Building
Harrisburg, Pennsylvania 17125
Telephone Number: (717) 783-6472 FAX Number: (717) 787-9138

Redevelopment Authority of Allegheny County
Koppers Building
436 Seventh Avenue, Suite 500
Pittsburgh, PA 15219
Telephone Number: (412) 350-1000

(d) Compliance with The Americans with Disabilities Act:

Pursuant to federal regulations promulgated under the authority of The Americans With Disabilities Act, 28 C.F.R. §35.101 et seq., the Grantee understands and agrees that no individual with a disability shall, on the basis of the disability, be excluded from participation in this Contract or from activities provided for under this Contract. As a condition of accepting and executing this Contract, the Grantee agrees to comply with the "**General Prohibitions Against Discrimination**," 28 C.F.R. §35.130, and all other regulations promulgated under Title II of The Americans With Disabilities Act which are applicable to the benefits, services, programs and activities provided by the Authority through contracts with outside contractors.

The Grantee shall be responsible for and agrees to indemnify and hold harmless the Authority, the County, the Commonwealth, and any of their respective agents and employees (collectively, the "**Authority Indemnitees**") from all losses, damages, expenses (including attorney's fees and expenses), claims, demands, suits and actions brought by any party against any such Authority Indemnitee as a result of the Grantee's failure to comply with the provisions of the above paragraph.

(e) Compliance with Anti-Pollution Regulations:

The Grantee and its subcontractors agree that in the performance of their obligations under this Contract they shall minimize pollution and shall strictly comply with all applicable environmental laws and regulations. The Grantee assumes responsibility for environmental review, decision-making, and action under the National Environmental Policy Act of 1969 (NEPA), Pl. 91-190 (42 U.S.C. 54321 et seq.), and Housing and Urban Development regulations at 24 C.F.R., Part 58. The Grantee certifies that it has completed and will comply with 24 C.F.R., Part 58 and all other applicable statutes and guidelines.

(f) Grantee Integrity Provisions:

(1) Definitions applicable to these provisions include the following:

"**Confidential Information**" means information that (a) is not already in the public domain, (b) is not available to the public upon request, (c) is not or does not become generally known to the Grantee from a third party without an obligation to maintain its confidentiality, (d) has not become generally known to the public through an act or omission of the Grantee, (e) has not been independently developed by the Grantee without the use of confidential information of the Authority or Commonwealth, or (f) the disclosure of which would give an unfair, unethical or illegal advantage to another desiring to contract with the Authority or the Commonwealth.

"**Consent**" means written permission signed by a duly authorized officer, employee or agent of the Authority.

"**Grantee**" means the individual or entity that has entered into this Contract with the Authority, including any person with a Financial Interest in any such entity.

"**Financial Interest**" means: (i) ownership of more than a 5% interest in any business; or (ii) holding a position as an officer, director, trustee, partner, employee, or the like, or holding any position of management.

"Gratuity" means tendering, giving or providing anything of more than nominal monetary value, including but not limited to cash, travel, entertainment, gifts, meals, lodging, loans, subscriptions, advances, deposits of money, services, employment or contracts of any kind.

"Immediate Family" means a spouse and any unemancipated child.

"Non-Bid Basis" means a contract awarded or executed by the Authority with Grantee without seeking bids or proposals from any other potential bidder or offeror.

"Political Contribution" means any payment, gift, subscription, assessment, contract, payment for services, dues, loan, forbearance, advance or deposit of money or any valuable thing, to a candidate for public office or to a political committee, including, but not limited to a political action committee, made for the purpose of influencing any election in the Commonwealth of Pennsylvania or for paying debts incurred by or for a candidate or committee before or after any election.

- (2) The Grantee shall maintain the highest standards of honesty and integrity in the performance of this Contract and shall take no action in violation of state or federal laws, regulations or other requirements applicable to Grantee or that govern contracting with the Authority.
- (3) The Grantee shall establish and implement a written business integrity policy, which includes, at a minimum, the requirements of these provisions as they relate to Grantee employee activity with the Authority and Authority employees, and which is distributed and made known to all Grantee employees.
- (4) The Grantee, its affiliates, agents and employees, shall not influence, or attempt to influence, any Authority employee to breach the standards of ethical conduct for Authority employees set forth in the Public Official and Employees Ethics Act, 65 Pa.C.S. §1101 et seq.; the State Adverse Interest Act, 71 P.S. §776.1 et seq.; and the Governor's Code of Conduct, Executive Order 1980-18, 4 Pa. Code §7.151 et seq., or to breach any other state or federal law or regulation.
- (5) The Grantee, its affiliates, agents and employees, shall not, in connection with this Contract or any other agreement with the Authority, directly or indirectly offer, give, or agree or promise to give, a Gratuity to an Authority official or employee or to any other person at the direction or request of any Authority official or employee.
- (6) The Grantee, its affiliates, agents and employees, shall not offer, give or agree or promise to give any Gratuity to an Authority official or employee or to any other person, the acceptance of which would violate the Governor's Code of Conduct, Executive Order 1980-18, 4 Pa. Code §7.151 et seq., or any statute, regulation, statement of policy, management directive or any other published standard of the Authority.
- (7) The Grantee, its affiliates, agents and employees, shall not, in connection with this Contract or any other agreement with the Authority, directly or indirectly offer, confer or agree to confer any pecuniary benefit on anyone as consideration for the decision, opinion, recommendation, vote, other exercise of discretion or violation of a known legal duty by any officer or employee of the Authority.
- (8) The Grantee, its affiliates, agents and employees, or anyone in privity with him or her, shall not accept or agree to accept from, or give or agree to give to, any person, any Gratuity in connection with the performance of work under a contract except as provided in the contract.
- (9) The Grantee shall not have a Financial Interest in any other contractor, subcontractor or supplier providing services, labor or material on the Project, unless the Financial Interest is disclosed to the Authority in writing and the Authority grants its Consent to such Financial Interest prior to execution of the contract.
- (10) The Grantee, its affiliates, agents and employees, shall not disclose to others any information, documents, reports, data, or records provided to, or prepared by, Grantee under this Contract without the prior written approval of the Authority, except as required by the Pennsylvania Right to Know Law, 65 P.S. §67.101 et seq., or other applicable law or as otherwise provided in this Contract. Any information, documents, reports, data or records secured by Grantee from the Authority or a third party

in connection with the performance of this Contract shall be kept confidential unless disclosure of such information is:

- (A) Approved in writing by the Authority prior to its disclosure;
 - (B) Directed by a court or other tribunal of competent jurisdiction unless the contract requires prior Authority approval;
 - (C) Required for compliance with federal or state securities laws or the requirements of national securities exchanges;
 - (D) Necessary for purposes of Grantee's internal assessment and review;
 - (E) Deemed necessary by Grantee in any action to enforce the provisions of this Contract or to defend or prosecute claims by or against parties other than the Authority;
 - (F) Permitted by the valid authorization of a third party to whom the information, documents, reports, data or records pertain; or
 - (G) Otherwise required by law.
- (11) Grantee certifies that neither it nor any of its officers, directors, associates, partners, limited partners or individual owners has been officially notified of, charged with, or convicted of any of the following and agrees to immediately notify the Authority in writing if and when it or any officer, director, associate, partner, limited partner or individual owner has been officially notified of, charged with, convicted of or officially notified of a governmental determination of any of the following:
- (A) Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements or receiving stolen property.
 - (B) Commission of fraud or a criminal offense or other improper conduct or knowledge of, approval of or acquiescence in such activities by Grantee or any affiliate, officer, director, associate, partner, limited partner, individual owner or employee or other individual or entity associated with:
 - (i) obtaining;
 - (ii) attempting to obtain; or
 - (iii) performing a public contract or subcontract.
- Grantee's acceptance of the benefits derived from the conduct shall be deemed evidence of such knowledge, approval or acquiescence.
- (C) Violation of federal or state antitrust statutes.
 - (D) Violation of any federal or state law regulating campaign contributions.
 - (E) Violation of any federal or state environmental law.
 - (F) Violation of any federal or state law regulating hours of labor, minimum wage standards or prevailing wage standards, discrimination in wages or child labor violations.
 - (G) Violation of the Act of June 2, 1915 (P.L. 736, No. 338), known as the Workers' Compensation Act, 77 P.S. §1 et seq.
 - (H) Violation of any federal or state law prohibiting discrimination in employment.
 - (I) Debarment by any agency or department of the federal government or by any other state.
 - (J) Any other crime involving moral turpitude or business honesty or integrity.

Grantee acknowledges that the Authority may, in its sole discretion, terminate this Contract for cause upon such notification or when the Authority otherwise learns that Grantee has been officially notified, charged or convicted.

- (12) If this Contract was awarded to Grantee on a Non-Bid Basis, Grantee must (as required by Section 1641 of the Pennsylvania Election Code) file a report of political contributions with the Secretary of the Commonwealth on or before February 15 of the next calendar year. The report must include an itemized list of all political contributions known to Grantee by virtue of the knowledge possessed by every officer, director, associate, partner, limited partner or individual owner that has been made by:
- (A) Any officer, director, associate, partner, limited partner, individual owner or members of the Immediate Family when the contributions exceed an aggregate of one thousand dollars (\$1,000) by any individual during the preceding year; or
- (B) Any employee or members of his Immediate Family whose political contributions exceeded one thousand dollars (\$1,000) during the preceding year.

To obtain a copy of the reporting form, Grantee shall contact the Bureau of Commissions, Elections and Legislation, Division of Campaign Finance and Lobbying Disclosure, Room 210, North Office Building, Harrisburg, PA 17120.

- (13) Grantee shall comply with the requirements of the Lobbying Disclosure Act, 65 Pa. C.S. §13A01 et seq., and the regulations promulgated pursuant thereto. Grantee employee activities prior to or outside of formal Authority procurement communication protocol are considered lobbying and subjects the Grantee employees to the registration and reporting requirements of the law. Actions by outside lobbyists on Grantee's behalf, no matter the procurement stage, are not exempt and must be reported.
- (14) When Grantee has reason to believe that any breach of ethical standards as set forth in law, the Governor's Code of Conduct or in these provisions has occurred or may occur, including, but not limited to contact by an Authority officer or employee which, if acted upon, would violate such ethical standards, Grantee shall immediately notify the Authority in writing.
- (15) Grantee, by submission of its bid or proposal and/or execution of this Contract and by the submission of any bills, invoices, or requests for payment pursuant to this Contract, certifies and represents that it has not violated any of these contractor integrity provisions in connection with the submission of the bid or proposal, during any contract negotiations or during the term of the contract.
- (16) Grantee shall cooperate with the Authority and the Commonwealth Office of Inspector General in any investigation of any alleged Authority employee breach of ethical standards and alleged Grantee non-compliance with these provisions. Grantee agrees to make identified Grantee employees available for interviews at reasonable times and places. Grantee, upon the inquiry or request of the Authority (or any of its officials, agents or representatives) or the Office of the Inspector General, shall provide, or if appropriate, make promptly available for inspection or copying, any information of any type or form deemed relevant by the Authority or the Inspector General to Grantee's integrity and compliance with these provisions. Such information may include, but shall not be limited to, Grantee's business or financial records, documents or files of any type or form that refers to or concern this Contract.
- (17) For violation of any of these contractor integrity provisions, the Authority may terminate this and any other contract with the Grantee, claim liquidated damages in an amount equal to the value of anything received in breach of these provisions, claim damages for all expenses incurred in obtaining another contractor/grantee to complete performance hereunder, and debar and suspend the Grantee from doing business with the Authority. These rights and remedies are cumulative, and the use or nonuse of any one shall not preclude the use of all or any other. These rights and remedies are in addition to those the Authority may have under law, statute, regulation or otherwise.

(g) Compliance with the Prohibition of Illegal Alien Labor on Assisted Projects Act.

Pursuant to the Act of May 11, 2006 (P.L. 173, No. 43), known as the Prohibition of Illegal Alien Labor on Assisted Projects Act, the Grantee shall not knowingly employ, or knowingly permit any of its subcontractors to

knowingly employ, the labor services of an illegal alien on activities funded in whole or in part by a grant or loan issued by the Authority.

In the event that the Grantee: (a) knowingly employs, or knowingly permits any of its subcontractors to knowingly employ, the labor services of an illegal alien on activities funded in whole or in part by grants or loans issued by the Authority; and (b) the Grantee or any of its subcontractors are sentenced under Federal law for an offense involving knowing use of labor by an illegal alien on activities funded in whole or in part by grants or loans issued by the Authority, then the Grantee shall: (i) repay to the Authority the entirety of that portion of the Grant Amount received by the Grantee from the Authority pursuant to this Contract, and (ii) be ineligible to apply for any Fund grant or loan for a period of two years.

(h) Compliance with the Minority and Women Owned Businesses Initiative.

The Grantee shall comply with Executive Order 11625 (Utilization of Minority Business Enterprise), Executive Order 12138 (Utilization of Female Business Enterprise), and Allegheny County Economic Development's M/W/DBE Participation Policies and Procedures developed pursuant thereto (the "**Policy**"), including, but not limited to, (i) putting forth a good faith effort (as defined in the Policy) to meet the goals stated therein from time to time, and (ii) accurate completion and timely submission of all forms, waivers and statements required by the terms thereof.

(i) Compliance with the Pennsylvania Prevailing Wage Act.

Pursuant to that certain Act of 1961 (P.L. 987, No. 442), known as the Pennsylvania Prevailing Wage Act, the Grantee shall comply, in performance of work at, or in connection with, the Project, the prevailing wage rate requirements specified therein. The prevailing minimum wages as determined by the Secretary of Labor and Industry or his duly authorized deputy or representative (the "**Secretary**") as of the Effective Date shall be incorporated into and made a part of this Contract and shall not be altered during the effectiveness hereof. The Grantee shall cause every contractor and subcontractor to keep an accurate record showing the name, craft and the actual hourly rate of wage paid to each workman employed by him in connection with the Project, and such record shall be preserved for two years from date of payment. Such records shall be updated and submitted weekly to the Project Manager, and all records shall be open at all reasonable hours to the inspection of the Project Manager, the Authority and the Secretary.

Before final payment of the Grant Amount is made, the Grantee shall cause each of the contractors and any subcontractors to file statements, in writing, in form satisfactory to the Secretary, certifying to the amounts then due and owing from such contractor and subcontractor, filing such statement to any and all workmen for wages due on account of public work, setting forth therein the names of the persons whose wages are unpaid and the amount due to each respectively, which statement so to be filed shall be verified by the oath of the contractor and subcontractor, as the case may be, that he has read such statement subscribed by him, knows the contents thereof and that the same is true of his own knowledge.

If the Commonwealth of Pennsylvania Department of Labor and Industry determines that the Pennsylvania Prevailing Wage Act is not applicable to the Project, the Grantee shall not be required to comply with the foregoing.

(j) Compliance with Allegheny County Prevailing Wage Requirements.

Pursuant to Chapter 280 of the Allegheny County Code, entitled "Wages: County and County-subsidized Projects" (together with any regulations issued thereunder, "**Chapter 280**"), the Grantee shall comply, and shall cause all "covered employers", contractors, subcontractors, developers, owners and managers as are required under Chapter 280 to comply, with respect to wages payable to applicable employees performing work on or related to the Project, with the prevailing wage rate requirements specified therein. The prevailing minimum wages as determined by the Allegheny County Controller (the "**Controller**") shall be incorporated into and made a part of this Contract. The Grantee shall keep, and shall cause every contractor, subcontractor, developer, owner and manager to keep, all records required under Chapter 280. Such records shall be open at all reasonable hours to the inspection of the Project Manager, the Authority and the Controller.

If the amount of the Grant, together with all financial assistance offered by Allegheny County or any department or division thereof, is less than one hundred thousand dollars (\$100,000), the Grantee shall not be required to comply with the foregoing.

(k) Compliance with Procurement Requirements.

The Grantee shall be responsible for the procurement of all supplies, equipment, services, and construction necessary for implementation of the Services. Procurement shall be carried out in accordance with all federal, state and local laws applicable to such Grantee (or, pursuant to Article VII, part (b), its permitted subgrantee, contractor or subcontractor) and with the policies of the Allegheny County Department of Economic Development for Grantee procurement. Requirements will vary based on (i) the legal status of the Grantee; (ii) the Project's other funding sources; and (iii) the total value of the Project.

(i) Right to Know Provisions

- (1) The Grantee and its contractors and subcontractors understand that this Contract, and all records related to or arising out of this Contract, are subject to requests made pursuant to the Pennsylvania Right-to-Know Law, 65 P.S. §§ 67.101 et seq. (the "RTKL").
- (2) If the Authority and/or the Commonwealth (including any agencies, subdivisions and instrumentalities thereof, which includes, without limitation, the CFA) (the Authority and the Commonwealth are hereinafter collectively referred to as the "Government Agencies", or in the singular, a "Government Agency") needs the Grantee's or any of its contractors' or subcontractors' assistance in any matter arising out the RTKL related to this Contract, the Grantee shall be notified using one or all of the modes of contact for the Grantee provided on the first page of this Contract (i.e., telephone, email, United States mail or any or all of them).
- (3) Upon notification from a Government Agency that Grantee's or any of its contractors' or subcontractors' assistance is required in order to respond to a request made to a Government Agency under the RTKL for information related to this Contract that may be in the Grantee's or such contractor or subcontractor's possession, constituting or alleged to constitute a public record in accordance with the RTKL (the "Requested Information"), Grantee shall, or shall cause its contractor or subcontractor to:
 - (A) Provide the applicable Government Agency with access to, and copies of, any document or information in Grantee's or such contractor or subcontractor's possession that the Government Agency believes is Requested Information, promptly upon request, and in any event within the time period indicated by the Government Agency in its notification to the Grantee (the "Response Period"); and
 - (B) Provide such other assistance as the applicable Government Agency may request in order to comply with the RTKL request.
- (4) If Grantee or its contractor or subcontractor considers the Requested Information to include a request for a Trade Secret or Confidential Proprietary Information, as those terms are defined in the RTKL, or other information that Grantee or its contractor or subcontractor considers exempt from production under the RTKL, Grantee must, promptly and in any event within the Response Period, notify the Government Agency and provide a written statement signed by a representative of Grantee explaining why the Requested Information is exempt from public disclosure under the RTKL. The Government Agency will rely upon the written statement from Grantee in denying a RTKL request for the Requested Information unless the Government Agency determines that the Requested Information is clearly not protected from disclosure under the RTKL. Should the Government Agency determine that the Requested Information is clearly not exempt from disclosure, Grantee shall immediately provide the Requested Information.
- (5) If Grantee fails to provide the Requested Information within the Response Period, Grantee shall indemnify and hold the Government Agencies harmless for any damages, penalties, costs, detriment or harm they may incur as a result of Grantee's failure, including any statutory damages.
- (6) The Government Agency will reimburse Grantee for any costs associated with complying with these provisions only to the extent allowed under the fee schedule established by the Office of Open Records or as otherwise provided by the RTKL if the fee schedule is inapplicable.

- (7) The duties of the Grantee and its contractors and subcontractors relating to the RTKL are continuing duties that survive the expiration of this Contract and shall continue as long as the Grantee and its contractors and subcontractors shall have Requested Information in their possession.